

3.

CASE #	CASE NAME	HEARING NAME
CVRI2506010	LIU vs MASCOT INTERNATIONAL LOGISTICS INC.	MOTION TO STRIKE CROSS-COMPLAINT
CVRI2506010	LIU vs MASCOT INTERNATIONAL LOGISTICS INC.	DEMURRER ON CROSS-COMPLAINT

Tentative Ruling:

The Demurrer and Motion to Strike are unopposed. Accordingly, the Demurrer is sustained without leave to amend and the motion to strike is granted in all respects. Moving party is to give notice of ruling within 10 days of this order.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2507318	VILLELA vs GONZALEZ	MOTION FOR INTERLOCUTORY JUDGMENT OF PARTITION AND APPOINTMENT OF REFEREE

Tentative Ruling:

Moving party: Plaintiff Leticia Villela, Co-Trustee of the Gonzalez-Villela Trust dated May 26, 2016

Responding party: Defendant Noel Gonzalez, Co-Trustee of the Gonzalez-Villela Trust dated May 26, 2016

On December 30, 2025, Plaintiff Leticia Villela, Co-Trustee of the Gonzalez-Villela Trust dated May 26, 2016 ("Plaintiff") filed a verified Complaint against Defendant Noel Gonzalez, Co-Trustee of the Gonzalez-Villela Trust dated May 26, 2016 ("Defendant") and Agustin Rodriguez Beltran for partition of five real properties located at 1654 Heartland Way, Corona, CA 92881 ("Heartland Property"); 3001 Wendell Way, Riverside, CA 92507 ("Wendell Property"); 1642 Sycamore St, Perris, CA 92570 ("Sycamore Property"); 1015 Bascomb Dr, Riverside, CA 92507 ("Bascomb Property"); and 6246 Heatherwood Dr, Jurupa Valley, CA 92509 ("Heatherwood Property").

In the Complaint, Plaintiff alleges that she and Defendant are no longer married. Plaintiff alleges that she owns an undivided 25% interest in the Heatherwood Property and an undivided 50% interest in the Heartland Property, Wendell Property, Sycamore Property, and Bascomb Property (collectively, "the Properties"). Plaintiff alleges that Defendant also owns an undivided 25% interest in the Heatherwood Property, and an undivided 50% interest in the other Properties. Beltran owns the remaining undivided 50% interest in the Heatherwood Property.

On August 7, 2026, Plaintiff dismissed Beltran from the action with prejudice.

Plaintiff now moves for interlocutory judgment of partition of the four Properties based on the pleadings, and for the Court to appoint Matthew L. Taylor, Esq. as a partition referee to effectuate the interlocutory judgment.

In opposition, Defendant argues that the motion for interlocutory judgment of partition should be denied because he is the majority owner in the Properties, as Plaintiff did not contribute anything toward the Bascomb, Sycamore, and Heatherwood properties. Defendant further contends that he has filed a Cross-Complaint requesting a constructive trust over the Properties at issue.

In reply, Plaintiff clarifies that she is requesting a partition in kind, not by sale, and repeats the arguments in the underlying motion.

Analysis

Plaintiff's motion is premature, as it asks the Court to skip the procedural nature of a partition action and go straight to interlocutory judgment under C.C.P. § 872.720. The statutes provides that "[t]he interests of the parties, plaintiff as well as defendant, may be put in issue, tried, and determined in the action." (C.C.P. § 872.610.)

Significantly, C.C.P. § 872.710(a) provides: "***At the trial***, the court shall determine whether the plaintiff has the right to partition." There has been no trial in this case. Accordingly, Plaintiff is treating this as a dispositive motion where none exists.

Under C.C.P. § 872.030, the rules of civil procedure apply to partition actions unless they are inconsistent with the partition statutes. "No partition can be had until the interests of all the parties have been ascertained and settled by a trial." (*Bacon v. Wahrhaftig* (1950) 97 Cal.App.2d 599, 603.) Plaintiff has not brought a summary judgment motion, and the Court has not yet ascertained the rights of the parties at this early stage, especially as Defendant contests Plaintiff's characterization of the parties' interests in the Properties and is attempting to file a Cross-Complaint against Plaintiff. While the parties both refer to the allegations set forth in Defendant's Cross-Complaint, the Court Clerk returned the Cross-Complaint unprocessed because the party names did not match those on the Complaint. Thus, there is currently no Cross-Complaint on file.

Given the above, Plaintiff's motion for interlocutory judgment and appointment of a referee is premature and is denied without prejudice.